MINUTES OF THE MEETING OF JUNE 2, 2004

The regular meeting of the Pine Valley Special Service District Board Members was held on Wednesday, June 2, 2004 at the Pine Valley Fire Station Conference Room, 680 Main Street in Pine Valley. Chairman Ron Snow called the meeting to order at 6:00 P.M. and led everyone in the Pledge of Allegiance to the Flag.

Board Members present: Ron Snow, Chairman, Gerald Schiefer, Vice Chairman, Victor Christensen and Mary Esther Putnam.
Also present: Dall Winn, Fire Chief, Julie M. Cropper, SecretarylTreasurer.
Public present: Steve Robinson, Washington County Planning and Zoning Commission; Jan Furner, USSD Executive; Beverley Udell, Deborah McCallum, Grant Cotterall, Mr. Cotterall, Mary Cotterall, Sandra Lattemere and George Cropper.

Secretary Julie M. Cropper read the minutes of the meeting held on Wednesday, May 5, 2004. The minutes were discussed. Mary Esther Putnam moved acceptance of the minutes. The motion was seconded by Gerald Schiefer.

COMMITTEE REPORTS

Ron is not aware of any building permits this last month.

Mary Esther Putnam discussed the upcoming July Pine Valley Special Service District Meeting. It is to be held at the Heritage Center at the regular meeting time and she will bring the refreshments.

She indicated that she will be working with Fred Pendelton on our website.

Gerald Schiefer asked about the gravel on the Grass Valley road. The tar is bleeding up again. Ken Canfield of Washington County Road Department has been called. Ron said the Forest Service will open the nearby cinder pit anytime the County wants to surface roads in Pine Valley. Ron also talked to Commissioner James Eardley about getting the road department to cinder roads.

Discussion of the on going OHV/ATV problem was evaluated. Memorial Day week-end was overwhelming with non-compliance to Utah laws.

Grant Cotterall called the police department and asked about the speeding. Many of the vehicles were at speeds up to 50 MPH. He was told by the sheriff's dispatcher to get a radar gun and check the speed. His family had experienced paint ball vandalism to their fence and was threatened personally by adults driving OHVs/ATVs.

Debbie McCallum asked about Pine Valley incorporating. Then we could hire our own enforcement.

Sheriff's Department is unwilling to allow local enforcement even if officers are certified.

It is obvious that the Washington County Sheriff does not have enough resources to adequately enforce the laws pertaining to the Pine Valley area.

Bevan Kilpak of the Forest Service is concerned and understands that we have a real problem.

Many OHV/ATV users are from out of town and have no Pine Valley property connections.

Utah State law indicates that OHVs/ATVs are not allowed on the paved roads, other than to cross over.

The sheriff's department has issued over 100 tickets to those who have broken the laws over the recent holidays.

FIRE DEPARTMENT

Dall announced Fire Department Training, Saturday, June 5, 2004 at 8:00 R.m. and again on Thursday, June 24, 2004 at 6:00 p.m.

-The Washington County Fire Chief Meeting at the fire station was a success.

-The fire trucks are all inspected and correctly registered.

-ISO letter return - Insurance rating of 6 is being maintained. Gerald asked if the Forest Service and personal mitigation will help. The letter did not acknowledge any change. It is all based on structures, water, engines, training, etc.

-Outside burning over June 1. People can have a small fire in a pit or ring. Using charcoal is okay. This may change later into the summer. The pit at the Pine Valley Lodge meets requirement and is contained.

-Dall said he has reached the point in the Pine Valley Fire Department that he thinks we need to select a new fire chief. He feels it should be one who lives here year around. He is willing to make the change or stay on if the Board desires. Victor Christensen said it is really up to Dall

and the rest of the Board Members agreed and expressed strong support for Dall if he wishes to continue.

-Questions were asked about whether this is something we should add to the by-laws we are working on. Should this position be reviewed every year? Should the fire chief be in for a longer term?

Dall said that Steve Robinson, George Cropper and Julie Cropper met with Mr. Jan T. Furner (Executive Director of the Utah Association of Special Districts) and it looked like the whole department budget should be prepared by and overseen by the Fire Chief.
- Enterprise Fund - Money for ongoing operations and expenses.
- Capitol Projects - Building, building improvements, new vehicles, etc.
As it is now we essentially end up having a zero budget balance at the end of each year. Nothing is going into a reserve for major needs.

Deborah McCallum commented that it wouldn't be fair to assess unimproved properties also. Emergency needs protect all properties. Most agricultural properties don't need or want emergency services.

It was suggested that we set up a work meeting with Jan Furner to work on this later this summer.

NEW BUSINESS

Gerald Schiefer discussed using the fire truck to spray water around the LOS Church parking lot. The Church is willing to pay some money for the fuel for the fire trucks to have that done. It has been good training for the volunteers to learn to work with the pumps. The Board Member all agreed to do this.

PUBLIC COMMENTS ON THE AGENDA

Deborah McCallum informed the Board Members that the Pine Valley Resort rented horses all weekend. Horses were not to be housed on the property. They do not have a County Permit to do this. Steve Robinson, Washington County Planning & Zoning Commission, said there were to be eight (8) items on the Planning Meeting agenda. Unresolved issues will be discussed then. PVSSD Board has no authority on this.

Mr. Cotterall said that his neighbors have a new corral and horses in their backyard. The Washington County regulations give 3 large or 5 small animals on 1 acre. This is probably not grandfathered because corrals must be 50' from homes. He needs to contact the Washington County Commissioners.

Beverly Udell expressed feelings for Deborah McCallum and the issues that Deborah is working through with her neighbors and the County.

Question - Does the Forest Service contribute money to the sheriff's office for patrol in the campgrounds and on forest lands? Answer unknown at this time.

PINE VALLEY HISTORICAL ADVISORY COMMITTEE - NONE

WASHINGTON COUNTY PLANNING AND ZONING COMMISSION - NONE

ADJOURNMENT

There being no further business, Mary Esther made a motion to adjourn. It was seconded by Gerald and the meeting adjourned at 7:05 p.m.